

Line 5

Case Name: *Randy Musterer v. Nathan Murillo, et al.*

Case No.: 25CV461059

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Randy Musterer (“Plaintiff”) moves under Code of Civil Procedure Section 2031.060 for a Protective Order:

1. Limiting the scope, time period, and categories of documents that may be requested to Snap Advisory Inc. (Plaintiff’s accounting services) to information directly relevant to the specific business losses Plaintiff has disclosed in his interrogatory responses, and deposition testimony.
2. Before the disclosure of the requested documents, instruct Snap Advisory Inc. to remit any responsive documents to Plaintiff’s counsel for review and designation of confidential information before any production is made.

Notice of Motion (the “Motion”) at 2:3-11 (filed: July 16, 2026).

Plaintiff makes this Motion on the following grounds:

- A. The requests invade Plaintiff’s constitutional right to privacy by seeking highly sensitive propriety business information, trade secrets, confidential client relationships, and financial data far exceeding the scope of Plaintiff’s claimed damages.
- B. The subpoenas of records are extraordinarily overbroad, unduly burdensome, and oppressive, seeking comprehensive financial audits of Plaintiff and two of his companies for over eight years, particularly when substantial responsive documents have already been produced.
- C. The burden, expense, and intrusiveness of complying with these demands clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

Motion at 2:12-23.

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. The Court has reviewed and considered the moving papers, opposition, reply, declarations and exhibits, arguments of counsel presented at the hearing, and the record. For the reasons set forth below, the Motion is **GRANTED IN PART AND DENIED IN PART**.

I. INTRODUCTION

Plaintiff moves for a Protective Order modifying or quashing deposition subpoenas served by Defendants Nathan Murillo and Bay Area Solar Solutions, Inc. on third-party accounting firm Snap Advisory, Inc. Motion at 1:14-20. The subpoenas seek extensive financial and operational records relating to plaintiff and his business entities, spanning from January 1, 2018, through the present. Plaintiff seeks to limit the scope, time period, and categories of documents to those directly relevant to his disclosed economic losses, and requests that Snap Advisory remit any responsive documents first to plaintiff's counsel for review and designation of confidential information before production to defendants. *Id.* at 2:5-11.

II. PROCEDURAL HISTORY

Plaintiff filed and served this motion on July 16, 2026, setting it for hearing on August 7, 2026. Defendants filed a substantive opposition on July 24, 2026, addressing the merits without claiming prejudice from the notice period or requesting a continuance. Plaintiff filed a reply.

Defendants served three deposition subpoenas for production of business records on Snap Advisory, Inc.: the first on March 25, 2026, with a return date of April 24, 2026; the second on June 15, 2026; and the third on June 25, 2026. Each subpoena requested various categories of financial records for plaintiff and his business entities—including Project WhiteLight LLC, Sushi Confidential locations, and Double Down Sushi—seeking documents dating from January 1, 2018, through the present. Plaintiff objected on grounds including overbreadth, privacy invasion, undue burden, and cumulative effect.

III. FACTUAL BACKGROUND

On March 16, 2023, plaintiff Randy Musterer sustained injuries in a motor vehicle collision allegedly caused by defendant Nathan Murillo, an employee of defendant Bay Area Solar Solutions, Inc. Pl.'s Memo. of Points & Authorities at 2:3-8. Plaintiff seeks economic damages for loss of income, loss of earning capacity, and related operational costs attributable to his inability to perform his job functions following the collision.

Plaintiff's economic damages claim is based on reduced salary, business profit decline, and increased labor costs due to hiring additional staff after the accident. Plaintiff has produced tax returns for the years 2020 through 2024 for himself and his business entities, along with Project WhiteLight earning records for 2023 through 2026, and contends that these documents adequately document his claimed income loss.

Defendants' subpoenas to Snap Advisory, Inc. seek financial and operational records spanning from January 1, 2018—more than five years before the collision—to the present.

Plaintiff contends that compliance with these subpoenas would impose severe burden and expense, that the requests invade his constitutional right to privacy, and that they are duplicative and cumulative of documents already produced.

IV. NOTICE

Plaintiff served the motion electronically on July 16, 2026, for a hearing on August 7, 2026. Motion at 1:1-4. Code of Civil Procedure section 1005(b) requires that motions be served at least sixteen court days before the hearing. C.C.P. § 1005(b). Where service is made electronically, the notice period is extended by two additional court days. (*Ibid.*) Counting forward from July 16, the motion was served fifteen court days before the hearing—one day short of the statutory requirement.

That said, Defendants served a substantive opposition on July 24, 2026, and have not demonstrated prejudice or requested a continuance because the one-day shortened notice period.

In the exercise of its discretion, the Court finds that any notice defect has been waived. The Motion is timely enough and will be considered on the merits now.

V. APPLICABLE LEGAL STANDARDS

A. Statutory Framework for Third-Party Subpoenas

Plaintiff's Motion invokes Code of Civil Procedure section 2031.060 as authority for the protective order. Motion at 2:2-4. Section 2031.060 applies to inspection demands served on a party to the action.

The proper statutory framework to analyze protective relief involving third-party deposition subpoenas is Code of Civil Procedure sections 1987.1 and 2025.420. Def.'s Opposition at 4:12-17.

Code of Civil Procedure section 1987.1 authorizes the court to quash, modify, or direct compliance with a deposition subpoena on terms or conditions the court declares, including protective orders. The Court may make any order appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. Pl.'s Reply at 5:1-5. Section 2025.420 further provides that before, during, or after a deposition, the court may make any order that justice requires to protect any party, deponent, or affected person from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. Def.'s Opposition at 4:12-17.

While Plaintiff invoked section 2031.060, the interests of justice favor resolving this discovery dispute on the merits, particularly where, as here, Defendants have filed an Opposition and the parties have fully briefed the substantive issues.

B. Overbreadth, Undue Burden, and Proportionality

Under Code of Civil Procedure section 2017.020(a), the court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Discovery requests that seek records over an unnecessarily long time

period or that encompass categories only tangentially related to the claims in dispute are subject to limitation. Doubts as to relevance should generally be resolved in favor of permitting discovery. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 656.)

C. Privacy Rights in Financial Records

California's constitutional right to privacy, enshrined in Article I, Section 1 of the California Constitution, protects individuals' financial and business records from unwarranted disclosure. (*Valley Bank*, 15 Cal.3d at 656.) In *Valley Bank*, the California Supreme Court held that a bank customer has a reasonable expectation of privacy regarding confidential financial affairs. (*Id.* at 657.) The Court must engage in “careful balancing of the right of civil litigants to discover relevant facts, on the one hand, with the right of bank customers to maintain reasonable privacy regarding their financial affairs, on the other.” (*Id.*)

Likewise, in *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531, the California Supreme Court reaffirmed that when discovery implicates constitutional privacy rights, courts must consider the seriousness of the privacy invasion, the countervailing interests supporting disclosure, and employ narrower alternatives where possible. Financial records warrant constitutional privacy protection. Contact information is generally considered private, though less sensitive than medical history or financial data. (*Id.*)

The party asserting a privacy right must establish a legally protected privacy interest and a reasonable expectation of privacy in the circumstances. Once a privacy interest is shown, the party seeking the information must demonstrate that the information is directly relevant and the discovery is proportionate to the needs of the case. The court must adopt the least intrusive means of obtaining the necessary information.

When a party places a matter in issue, such as income or earning capacity, any privacy waiver is limited to information directly relevant to the issue placed in controversy.

VI. ANALYSIS OF THE MOTION

A. Plaintiff Has Established Good Cause for Protective Relief

Plaintiff has made a specific and particularized showing of good cause for a protective order. The subpoenas seek financial and operational records spanning from January 1, 2018—more than five years before the March 16, 2023 collision—through the present. Plaintiff contends that he has already produced tax returns for 2020 through 2024 and other financial documentation substantiating his claimed economic losses, and that the subpoenas impose an extraordinary burden by effectively demanding an audit of over eight years of business and personal financial data. The burden of compiling such voluminous records from a third-party accounting firm, both in terms of time and expense, is substantial.

Plaintiff has also established a legally protected privacy interest in his personal and business financial records. (*Valley Bank*, 15 Cal.3d at 656.) Financial records held by his

accounting firm are confidential, and plaintiff has a reasonable expectation that detailed financial and operational records will not be disclosed wholesale without judicial scrutiny.

B. The Subpoenas Are Overbroad in Temporal Scope

Defendants seek records dating to January 1, 2018, yet the accident occurred on March 16, 2023. While it is reasonable for Defendants to seek a baseline period of financial performance before the collision for comparison purposes, a five-year pre-collision lookback period is excessive on its face.

A reasonable baseline must encompass sufficient pre-collision financial data to establish plaintiff's earning capacity and business performance trends before the injury. Extending the request to January 1, 2018, sweeps in records that bear little or no relevance to plaintiff's claimed economic losses. The burden and expense of compliance with such an extended request clearly outweigh the marginal utility of records from 2018 through early 2021.

Balancing the privacy interests at stake against Defendants' legitimate need to test Plaintiff's economic claims, the Court concludes that a two-year baseline period is the appropriate outer bound. So production here will be limited to the period from January 1, 2021, forward. This affords Defendants access to two full pre-collision calendar years to establish baseline earning capacity and business performance, supports meaningful trend analysis, and remains substantially narrower than the five-year period originally requested. This limitation strikes a reasonable balance between affording Defendants necessary discovery to test plaintiff's economic claims and protecting Plaintiff from the burden and intrusion of an eight-year audit of his business and personal finances. Accordingly, the subpoenas are **QUASHED** to the extent they seek records predating January 1, 2021.

C. The Subpoenas will be limited to Specific Relevant Categories

The categories of documents requested in the subpoenas are overly broad and undifferentiated. To be sure, Plaintiff has placed his income, earning capacity, and business financial performance at issue by seeking compensation for lost income and increased operational costs. And Defendants are entitled to test those claims through *targeted* discovery. But the discovery must be proportionate to the needs of the case.

Accordingly, the subpoenas are **MODIFIED** to limit production to the following categories, for the period from January 1, 2021, forward:

- Documents sufficient to verify plaintiff's claimed loss of income and loss of earning capacity, including but not limited to:
 - Federal and state income tax returns (individual and business entity);
 - Profit-and-loss statements;
 - General ledgers and ledger entries; and
 - Financial statements prepared in the ordinary course of business.

- Documents sufficient to verify claimed increased labor costs attributable to plaintiff's inability to perform his job functions following the collision, including but not limited to:
 - Payroll records for replacement staff hired after March 16, 2023;
 - Employment agreements or offer letters for such replacement staff; and
 - Timekeeping or scheduling records showing staffing changes.
 - Such other specific categories of financial records as are directly identified in plaintiff's damages computation served pursuant to Code of Civil Procedure section 998 or plaintiff's responses to interrogatories concerning the calculation of damages.

Moreover, the subpoenas are **QUASHED** to the extent they seek categories of documents not reasonably calculated to lead to admissible evidence on the economic damages claims.

D. Monthly Bank Statements and Deposit Slips Will Not Be Produced Now

Bank records—including monthly bank statements, deposit slips, cancelled checks, and wire transfer confirmations—present heightened privacy concerns. Bank statements reveal not only business transactions but also personal financial activity, vendor relationships, customer identities, and cash-flow details that may be competitively sensitive or entirely unrelated to the claims in dispute.

Plaintiff has already produced tax returns for multiple years, which constitute a less intrusive and more reliable source of income and earnings information. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) Profit-and-loss statements, general ledgers, and ledger entries provide transaction-level detail sufficient to verify income flows and operational expenses without the line-by-line intrusion of monthly bank statements.

Weighing all these facts, and in the exercise of its discretion, the Court finds that production of monthly bank statements and deposit slips would be cumulative, more invasive than available alternatives, and would impose a burden and invasion of privacy that clearly outweighs the likelihood of discovering admissible evidence, given the availability of tax returns, profit-and-loss statements, and ledger entries.

Accordingly, production of monthly bank statements, deposit slips, cancelled checks, and wire transfer records is prohibited for now based on the current record. This prohibition is without prejudice to a future motion by Defendants, supported by a particularized showing of need tied to a concrete discrepancy or gap in the financial records otherwise produced, demonstrating that bank records are essential to resolve a specific factual dispute material to the claims or defenses.

E. Confidentiality Protocol and *Simultaneous Production*

Plaintiff requests that Snap Advisory remit any responsive documents *first* to Plaintiff's counsel for review and designation of confidential information before production to defendants. Motion at 2:9-11. While plaintiff's privacy concerns are legitimate, granting him unilateral control over what defendants may see would improperly allow him to act as gatekeeper to discovery. Opposition at 5:21-6:9.

A more appropriate safeguard is a confidentiality protocol combined with an opportunity for limited in camera review of specific documents.

Accordingly, the Court now adopts and **ORDERS** that the following procedures and protocol be followed here:

Simultaneous Production Under Protective Order: Snap Advisory, Inc. shall produce responsive documents (as limited by the temporal and categorical restrictions set forth above) to both Plaintiff's counsel and Defendants' counsel *simultaneously*. Production shall be made subject to a stipulated protective order governing the designation, handling, and use of confidential information, or, if the parties are unable to stipulate to a protective order within fourteen (14) days of the date of this order, subject to a confidentiality designation procedure to be established by further order of the court upon noticed motion by either party.

Ten-Day Review Period: Plaintiff shall have ten (10) calendar days after the date of production to review the documents produced and to identify in writing to defendants' counsel and to the court any specific documents or categories of information that plaintiff contends (a) are subject to trade-secret protection, (b) contain competitively sensitive information warranting heightened confidentiality restrictions, or (c) are not reasonably calculated to lead to admissible evidence and should not have been produced. Plaintiff's written identification shall specify with particularity the grounds for objection to each document or category and shall propose specific redactions or restrictions.

Restriction on Substantive Use Pending Resolution: Defendants' counsel may receive and review the produced documents immediately upon production, but shall not use any document substantively (including in depositions, motions, or settlement communications) until the expiration of the ten-day review period. If Plaintiff timely identifies specific documents for further review within the ten-day period, defendants shall not use those specifically identified documents substantively until the court rules on plaintiff's objection, either after an informal meet-and-confer process or after an in-camera review if requested by Plaintiff.

In Camera Review Upon Request: If Plaintiff timely identifies specific documents and the parties are unable to resolve the dispute informally—*and the Court strongly urges and expects the parties with their counsel to resolve the vast majority of such disputes themselves without the need for Court intervention*—Plaintiff may file a further motion, with supporting declaration and lodged copies of the disputed documents

for in camera review, seeking an order that specific documents be withheld from production or produced only in redacted form. The motion shall be filed within ten (10) calendar days after the end of the initial ten-day review period.

In light of the above procedures and protocol now in place, Plaintiff's request for unilateral pre-production review and redaction by Plaintiff's counsel is **DENIED**. These procedures accommodate and strike the right balance between Plaintiff's legitimate privacy and trade-secret interests while preserving Defendants' right to discovery relevant to the issues in dispute and ensuring that the Court, not any party's counsel, serves as the neutral arbiter of disputes over confidentiality and relevance. (*Valley Bank*, 15 Cal.3d at 658).

F. Reservation of Defendants' Rights

If Defendants contend that additional categories of documents or an extended time period are necessary to test plaintiff's economic claims, Defendants may seek further discovery upon a particularized showing of need. Any such motion shall identify with specificity the categories of documents sought, the time period, and the factual or legal basis demonstrating that the information is directly relevant, essential to the fair resolution of the claims or defenses, and not obtainable through less intrusive means.

VII. CONCLUSION & ORDER

Accordingly, Plaintiff Randy Musterer's Motion for Protective Order Re Defendants' Deposition Subpoenas for Production of Documents to Snap Advisory, Inc. is **GRANTED IN PART AND DENIED IN PART**.

Specifically, as explained in great detail above, the Court in the exercise of its discretion **ORDERS** that the deposition subpoenas served by defendants Nathan Murillo and Bay Area Solar Solutions, Inc. on Snap Advisory, Inc. are **MODIFIED** as follows:

- **Temporal Scope:** Production is limited to documents dated or relating to the period from **January 1, 2021, forward**. The subpoenas are **QUASHED** to the extent they seek documents predating January 1, 2021.
- **Categorical Scope:** Production is limited to:
 - Documents sufficient to verify plaintiff's claimed loss of income and loss of earning capacity, including federal and state income tax returns (individual and business entity), profit-and-loss statements, general ledgers and ledger entries, and financial statements prepared in the ordinary course of business;
 - Documents sufficient to verify claimed increased labor costs attributable to plaintiff's inability to perform his job functions following the collision, including payroll records for replacement staff hired after March 16, 2023, employment agreements or offer letters for such replacement staff, and timekeeping or scheduling records showing staffing changes; and

- Such other specific categories of financial records as are directly identified in plaintiff's damages computation or interrogatory responses concerning the calculation of damages.
- The subpoenas are **QUASHED** to the extent they seek categories of documents not reasonably calculated to lead to admissible evidence on the economic damages claims.
- **Bank Records Prohibited:** Production of monthly bank statements, deposit slips, cancelled checks, and wire transfer records is **PROHIBITED**. This prohibition is without prejudice to a future motion by Defendants, supported by a particularized showing of need tied to a concrete discrepancy or gap in the financial records otherwise produced.
- **Simultaneous Production and Confidentiality Protocol:**
 - Snap Advisory, Inc. shall produce responsive documents (as limited by the temporal and categorical restrictions set forth above) to both Plaintiff's counsel and Defendants' counsel *simultaneously*.
 - Production shall be made subject to a stipulated protective order governing the designation, handling, and use of confidential information. If the parties are unable to stipulate to a protective order within fourteen (14) days of the date of this order, either party may file a noticed motion for a court-ordered confidentiality designation procedure. *Note well* that the Court strongly urges and expects the parties to agree to a stipulated protective order within 14 days of today.
 - Plaintiff shall have ten (10) calendar days after the date of production to review the documents produced and to identify in writing to defendants' counsel and to the court any specific documents or categories of information that Plaintiff contends are subject to trade-secret protection, contain competitively sensitive information, or are not reasonably calculated to lead to admissible evidence. Plaintiff's written identification shall specify with particularity the grounds for objection and shall propose specific redactions or restrictions.
 - Defendants' counsel may receive and review the produced documents immediately upon production, but shall not use any document substantively (including in depositions, motions, or settlement communications) until the expiration of the ten-day review period. If plaintiff timely identifies specific documents for further review within the ten-day period, Defendants shall not use those specifically identified documents substantively until the court rules on plaintiff's objection.
 - If the parties are unable to resolve any dispute over specific documents informally, Plaintiff may file a further motion, with supporting declaration

and lodged copies of the disputed documents for in camera review, within ten (10) calendar days after the end of the initial ten-day review period.

- Plaintiff's request for unilateral pre-production review and redaction by plaintiff's counsel is **DENIED**.
- **Reservation of Rights:** Defendants' right to seek additional categories of documents or an extended time period upon a particularized showing of need is reserved. Any such motion shall identify with specificity the categories of documents sought, the time period, and the factual or legal basis demonstrating that the information is directly relevant, essential to the fair resolution of the claims or defenses, and not obtainable through less intrusive means.
- Each party shall bear its own costs and attorneys' fees in connection with this motion.

SO ORDERED.

Date: August 7, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Bank of America, N.A. v. Anthony Snyder*

Case No.: 24CV444941

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Bank of America, N.A. (“Plaintiff”) moves under Code of Civil Procedure Section 664.6 for an Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment against Defendant Anthony Snyder (“Defendant”) pursuant to Stipulation of the parties. Notice of Motion (the “Motion”) at 1:26-2:2 (filed: Dec. 22, 2025).

The Motion came on for hearing on August 7, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

BACKGROUND

This is a straightforward matter.

Plaintiff and Defendant knowingly, voluntarily, and intelligently signed and filed in this action on November 13, 2024 a written settlement stipulation agreement, in which they expressly agreed that the Court would retain jurisdiction under Code of Civil Procedure Section 664.6 to enforce the terms of that settlement agreement (the “November 13, 2024 Settlement Agreement”). In this November 13, 2024 Settlement Agreement, the parties agreed, among other things, that:

- Defendant Snyder stipulates to the entry of judgment in favor of Plaintiff Bank of America, N.A. in the principal sum of \$3,024.84 and court costs of \$320.09 for a total judgment in the amount of \$3,344.93 (the “Judgment Amount”);
- Plaintiff would not request that Judgment be entered so long as Defendant is not in default with the payment plan set forth in this Settlement Agreement; and
- Defendant agrees to pay to Plaintiff a minimum of \$170.00 on or before the 30th day of each and every month commencing on September 30, 2024, through and including March 30, 2026, and then a final payment of \$114.93 on or before April 30, 2026, until the Defendant has paid the Judgment Amount.